

and a reasonable inquiry has been made[.]” The statement also must “specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer in the possession, custody, or control of the responding party.”

The Code permits responses to interrogatories that refer to documents, but only under limited circumstances. Code of Civil Procedure section 2030.230 provides that where an answer “would necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from the documents of the party to whom the interrogatory is directed, and if the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party, it is a sufficient answer to that interrogatory to refer to this section and to specify the writings from which the answer may be derived or ascertained.” This does not permit a response to an interrogatory of “see the documents.” The documents must be specified, and the burden of making the summary must be “substantially the same” for each party.

The Court describes these general requirements for discovery because it appears that nearly all of the issues in the motion arise from Corteva and DTSC’s differences over the general scope of discovery. Given the Court’s general guidance—which likely would lead to granting DTSC’s motion at least in large part—the parties are directed to meet and confer over the remaining issues in the pending motion. **The matter is continued to February 5, 2026, at 9:00 a.m.** The parties are to file a joint statement indicating the matters that have been resolved and the matters that remain unresolved (if any), no later than January 29, 2026.

17. 9:00 AM CASE NUMBER: MSC21-02213
CASE NAME: WANG VS JOHN MUIR MEDICAL
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY: JOHN MUIR MEDICAL GROUP A CALIFORNIA CORPORATION
TENTATIVE RULING:
Off calendar. Matter settled.

18. 9:00 AM CASE NUMBER: MSL17-00218
CASE NAME: HERRERA VS GOSAIN/HAPPY VALLEY
***HEARING ON MOTION IN RE: COMPEL ACKNOWLEDGMENT OF SATISFACTION OF JUDGMENT**
FILED BY: HAPPY VALLEY ROAD,LLC
TENTATIVE RULING:
Granted. The moving papers establish that the requirements are met, and there is no opposition.

19. 9:00 AM CASE NUMBER: N25-1381
CASE NAME: PETITION OF:JANE DOE
HEARING ON PETITION IN RE: FOR ORDER FOR RELIEF FROM REQUIREMENT TO PRESENT CLAIM
FILED BY: DOE, JANE
TENTATIVE RULING:
See line 22.

20. 9:00 AM CASE NUMBER: N25-1381

CASE NAME: PETITION OF:JANE DOE

HEARING ON PETITION IN RE: ORDER FROM RELIEF FROM REQUIREMENT TO PRESENT CLAIM (N25-1382)

FILED BY:

TENTATIVE RULING:

See line 22.

21. 9:00 AM CASE NUMBER: N25-1381

CASE NAME: PETITION OF:JANE DOE

HEARING ON PETITION IN RE: FOR ORDER FOR RELIEF FROM REQUEST TO PRESENT CLAIM (N25-1384)

FILED BY:

TENTATIVE RULING:

See line 22.

22. 9:00 AM CASE NUMBER: N25-1381

CASE NAME: PETITION OF:JANE DOE

HEARING ON PETITION IN RE: FOR ORDER FOR RELIEF FROM REQUIREMENT TO PRESENT CLAIM (N25-1385)

FILED BY:

TENTATIVE RULING:

Introduction

Before the Court is Petitioners' Claims of Estate of O.Y., Claims of A.Y., Claims of W.Y., Wrongful Death Claims of A.Y. and W.Y. Motion for Relief from the Government Claims Presentation requirement.

The Court rules that **all four of Petitioner's government claims were filed timely. Accordingly, the petition is granted.**

Factual Background

On January 8, 2022, City law enforcement officers responded to a domestic disturbance report at 2201 San Jose Drive, Apt E203, Antioch, CA 94509, where O.Y. (at that time still alive), and her brother, Petitioner W.Y., resided with their biological parents, Jessika Fulcher ("Mother Fulcher") and Warren Young, Sr. ("Father Young"). ("Petition for Order for Relief from Requirement to Present Claim (Gov. Code § 946.6)," In Re Claim of the Estate of O.Y. v. City of Antioch, et al., Case No. N25-1382 ("Petition"), 1 Ex. 1, p. 1.) During this visit, the law enforcement officers allegedly witnessed indications that O.Y. and Petitioner W.Y. were unsafe and subject to abuse. Yet, the agents allegedly failed to report this discovery to Contra Costa County Child Protective Services ("CPS"), as purportedly required by the Child Abuse and Neglect Reporting Act ("CANRA"). (Petition, Ex. 1, p. 1.)

At the time of this domestic disturbance report, O.Y. and Petitioner W.Y. were wards of the juvenile court, and subject to an ongoing juvenile dependency action in this Superior Court, due to concerns of abuse and neglect by their biological parents. (Petition, Ex. 3, ¶ 4.) Several months later, in April 2022, this Superior Court closed the dependency case, and the biological parents resumed full legal authority over O.Y. and Petitioner W.Y. (Petition, Ex. 3, ¶ 4.)